Syllabus

BOWE *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT

No. 24–5438. Argued October 14, 2025—Decided January 9, 2026

Petitioner Michael S. Bowe is serving a 24-year sentence in federal custody after pleading guilty in 2008 to three offenses: (1) conspiracy to commit Hobbs Act robbery; (2) attempted Hobbs Act robbery; and (3) using a firearm in relation to a "crime of violence" as defined in 18 U. S. C. § 924(c)(1)(A). Bowe's § 924(c) conviction carried a mandatory 10-year sentence to be served consecutively to his sentence for the robbery offenses. To have been properly convicted under § 924(c), at least one of Bowe's other offenses must qualify as a "crime of violence" under one of two definitional clauses in § 924(c): the "elements clause," § 924(c)(3)(A), or the "residual clause," § 924(c)(3)(B). But decisions issued years after Bowe's conviction call into question whether either clause can support his § 924(c) conviction. See *United States* v. *Davis*, 588 U. S. 445, 470 (residual clause void for vagueness); *United States* v. *Taylor*, 596 U. S. 845, 860 (attempted Hobbs Act robbery is not a crime of violence under the elements clause).

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This case concerns Bowe's efforts to obtain postconviction relief from the mandatory consecutive 10-year sentence imposed under § 924(c). A comprehensive statutory scheme governs when and how state and federal prisoners can seek postconviction relief in federal court. See 28 U. S. C. § 2254 (state prisoners); § 2255 (federal prisoners). Particularly relevant here, under the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), second or subsequent efforts at obtaining postconviction relief require the prisoner first to seek certification from a court of appeals that the filing meets threshold conditions before a prisoner can proceed in a district court. See § 2244 (authorization requests by state prisoners); § 2255(h) (successive-motion requests by federal prisoners). While §§ 2244 and 2255(h) have distinct requirements, § 2255(h) cross-references some of the procedures in § 2244 for how a "panel of the appropriate court of appeals" "certifie[s]" a second or successive filing.

Bowe first sought § 2255 relief in 2016, arguing that § 924(c)'s residual clause was unconstitutional. The District Court denied the motion, reasoning that—regardless of the residual clause's constitutionality—Bowe's § 924(c) conviction was proper because attempted Hobbs Act robbery qualified as a "crime of violence" under the elements clause. In 2019, after *Davis*, Bowe sought permission from the Eleventh Circuit

under § 2255(h) to file a second or successive motion. A three-judge panel found that Bowe had not met § 2255(h)'s threshold conditions. Although the panel acknowledged that *Davis* announced a new, retroactive constitutional rule (one of the two statutory gateways for successive motions under § 2255(h)(2)), it held that Bowe could not make a prima facie showing that his § 924(c) conviction was unconstitutional because then-binding Circuit precedent still treated attempted Hobbs Act robbery as a "crime of violence" under the elements clause. After *Taylor* was decided in 2022, Bowe once again sought authorization under § 2255(h), arguing that *Davis* and *Taylor* leave none of his convictions as a valid predicate "crime of violence" under § 924(c). A panel dismissed the part of Bowe's request resting on *Davis*, reasoning that the claim had been "presented in a prior application" and that the panel lacked jurisdiction over such old claims under § 2244(b)(1). The panel also denied the part of Bowe's request that rested on *Taylor*, concluding that *Taylor* did not announce a new constitutional rule within the meaning of § 2255(h)(2). Bowe returned to the Eleventh Circuit several times, seeking authorization to pursue postconviction relief, initial hearing en banc, and reversal of Circuit precedent applying § 2244(b)(1)'s old-claim bar to federal prisoners' successive § 2255 motions. He also requested certification of the question whether § 2244(b)(1) applies to federal prisoners. See § 1254(2). Bowe's requests were denied. Bowe eventually filed this petition for certiorari, pointing out a Circuit split: Six Circuits apply § 2244(b)(1)'s old-claim bar to federal prisoners, while three do not. The Court granted review.

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Held:

1. The Court has jurisdiction because § 2244(b)(3)(E) does not bar this Court's review of a federal prisoner's request to file a second or successive § 2255 motion. Pp. 22–36.

(a) Section 2244(b)(3)(E) provides that the denial of authorization "to file a second or successive application" shall not be the subject of a certiorari petition. That provision does not apply to federal prisoners. It is housed within § 2244, which imposes several strict requirements that apply only to state prisoners. It also speaks only to a "second or successive application," § 2244(b)(3)(E), but unlike state prisoners who file such "applications," federal prisoners file "motions," see § 2255(e). Pp. 22–24.

(b) The Government contends that § 2255(h)'s cross-reference to § 2244—providing that a successive motion must be "certified as provided in section 2244 by a panel of the appropriate court of appeals to contain" the content requirements in § 2255(h)—also imports § 2244's certiorari bar. But § 2255(h)'s cross-reference, coupled with its context,

does not provide the clear indication needed to strip this Court of jurisdiction. Given the broad grant of certiorari jurisdiction to the Court, see § 1254(1), Congress must speak clearly if it seeks to impose exceptions to that jurisdiction. In *Castro* v. *United States*, 540 U. S. 375, a case also brought by a federal prisoner, the Court held that § 2244(b)(3)(E) posed no bar to its review, explaining that the Government's reading would close the Court's doors to a class of habeas petitioners "without any clear indication" that Congress intended such a result. *Id.*, at 381. The same "clear indication" necessary in *Castro* to strip the Court of jurisdiction is required here: The § 2244(b)(3)(E) issue arises in the same context and the Government argues that the very same provision bars the Court's review in this case. This clear indication is not a "magic words" requirement; it simply asks whether text and structure unambiguously show that Congress intended to prevent the Court's exercise of its certiorari jurisdiction. A provision that can reasonably be read more than one way in context is not sufficiently clear.

Section 2255(h)'s cross-reference does not provide the clear indication of intent required to strip the Court of jurisdiction. The language of the cross-reference is both narrow and specific. It says that a second or successive § 2255 motion "must be certified as provided in section 2244 by a panel of the appropriate court of appeals to contain" one of two threshold content requirements. It incorporates only the provisions in § 2244 that "provid[e]" for how a "panel of the appropriate court of appeals" "certifie[s]" a second or successive filing and directs that those procedures be used to evaluate whether the filing "contain[s]" the content requirements listed in § 2255(h). Section 2244(b)(3)(E) is not one of those provisions, and it has nothing to do with the content requirements in § 2255(h).

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For these reasons and others, whether § 2244(b)(3)(E)'s certiorari bar falls within the scope of § 2255(h)'s cross-reference is at most ambiguous. Ambiguous language cannot provide the required clear indication, and the Government's remaining arguments do not supply the necessary clarity that the text lacks. The Government also suggests that it would make little sense to bar certiorari review of authorization decisions concerning state prisoners but not federal ones. That argument carries little weight when the governing standard requires Congress to speak clearly. Moreover, Congress treated state and federal prisoners differently across AEDPA, with state prisoners often facing far higher hurdles to relief. Allowing further review in this Court is thus consistent with both AEDPA's purposes and practical considerations. Pp. 25–36.

2. Section 2244(b)(1) does not apply to second or successive motions filed under § 2255(h) by federal prisoners challenging their convictions or sentences. Pp. 36–42.

Syllabus

(a) The text of § 2244(b)(1)'s old-claim bar states that "[a] claim presented in a second or successive habeas corpus application under section 2254 that was presented in a prior application shall be dismissed." State prisoners alone file habeas corpus applications under § 2254. That specific reference to § 2254 was deliberate: Elsewhere in this very section, Congress expressly distinguishes § 2254 "applications" from § 2255 "motions." § 2266(a); see also §§ 2253(c)(1)(A)–(B) (distinguishing state habeas proceedings from proceedings under § 2255). When interpreting statutes, the Court presumes that "differences in language like this convey differences in meaning." *Henson* v. *Santander Consumer USA Inc.*, 582 U. S. 79, 86. By its plain terms, § 2244(b)(1)'s old-claim bar applies only to state prisoners. Pp. 36–37.

(b) Section 2255(h)'s cross-reference to § 2244 does not make § 2244(b)(1) applicable to federal prisoners' successive § 2255 motions. *Amicus* contends that § 2255(h) incorporates § 2244, including § 2244(b)(3)(C), which requires a panel to determine that "the application makes a prima facie showing that [it] satisfies the requirements of this subsection." From here, one of the "requirements of . . . subsection" (b) is § 2244(b)(1). Accordingly, *amicus* argues, following this chain of cross-references leads to the conclusion that § 2244(b)(1) must apply to federal prisoners. But that position is erroneous under the same reasoning that explains why the Court has jurisdiction. Section 2255(h)'s cross-reference incorporates the procedures in § 2244 only as they relate to how a panel certifies a second or successive filing. At bottom, the best textual reading of both § 2255(h) and § 2244(b) is that, when a federal prisoner moves for authorization, a panel can authorize the filing if the filing makes a prima facie showing that it satisfies one of the two grounds in § 2255(h), the "two—and only two—conditions in which a second or successive § 2255 motion may proceed." *Jones* v. *Hendrix*, 599 U. S. 465, 477.

The argument that Congress meant for AEDPA to treat second or successive filings by federal and state prisoners the same fails. AEDPA is replete with examples of Congress treating state and federal prisoners differently—including in the context of limitations on second or successive filings. Any concern associated with Congress allowing old-claim litigation for federal prisoners is overstated given that all claims, even the repeat ones, must meet the "strictly limited" threshold requirements of § 2255(h), *Jones*, 599 U. S., at 476, and should they survive that review, they must still conform with the demanding statute of limitations contained in § 2255(f), *Dodd* v. *United States*, 545 U. S. 353, 359. Very few claims will satisfy either, let alone both. The Court leaves it to the Eleventh Circuit to determine in the first instance

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whether Bowe should receive authorization to file a second or successive motion under the correct standard. Pp. 36–41.

Vacated and remanded.

SOTOMAYOR, J., delivered the opinion of the Court, in which ROBERTS, C. J., and KAGAN, KAVANAUGH, and JACKSON, JJ., joined. JACKSON, J., filed a concurring opinion, *post*, p. 42. GORSUCH, J., filed a dissenting opinion, in which THOMAS and ALITO, JJ., joined, and in which BARRETT, J., joined as to Part I, *post*, p. 47.

Andrew L. Adler argued the cause for petitioner. With him on the briefs were *Janice L. Bergmann* and *Gregory Cui*.

Anthony A. Yang argued the cause for the United States. On the briefs were *Solicitor General Sauer*, *Deputy Solicitor General Feigin*, *Acting Assistant Attorney General Galeotti*, and *Ann O'Connell Adams*.

Kasdin M. Mitchell, by appointment of the Court, 604 U. S. 1117, argued the cause as *amicus curiae* in support of judgment below as to Question 1. With her on the brief was *Philip M. Cooper*.*

Page Proof Pending Publication

JUSTICE SOTOMAYOR delivered the opinion of the Court.

Congress has created a comprehensive scheme to address when and how state and federal prisoners can seek postconviction relief in federal courts. A state prisoner can file an application for a writ of habeas corpus under 28 U. S. C. §2254. A federal prisoner, by contrast, can file a motion to

*Briefs of *amici curiae* urging reversal were filed for Habeas Scholars by *Kwaku A. Akowuah* and *Christopher A. Eiswerth*; for the National Association of Criminal Defense Lawyers by *Daniel S. Volchok*, *Gary M. Fox*, *Conrad Kahn*, and *David Oscar Markus*; for the National Association of Federal Defenders by *Jennifer Niles Coffin*, *Keith M. Donoghue*, *Shelley M. Fite*, *Judith H. Mizner*, *Paresh Patel*, and *Cathi Adinaro Shusky*; and for the University of Virginia School of Law's Civil Rights Clinic et al. by *Juan O. Perla*, *Danny Zemel*, *T. Barry Kingham*, and *Robert García*.

Jeffrey W. Chen, *Matthew R. Sellers*, and *Stephen I. Vladeck*, *pro se*, filed a brief for Federal Courts Scholars as *amici curiae*.